

HOUSE BILL 1966

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 37,
Chapter 5, relative to the department of children's
services.

WHEREAS, quality assurance efforts in child and family services have traditionally focused on determining state compliance with federal statutory and regulatory requirements to avoid a loss of federal funds to the State; and

WHEREAS, quality assurance reviews have also most often been directed primarily toward foster care services, rather than examining the full continuum of services needed and used by children and families; and

WHEREAS, federal child and family service reviews now examine outcomes of services for children and families rather than focusing entirely on procedural requirements following significant revisions by Congress in 1993; and

WHEREAS, the state of Alabama operates a successful outcomes-based, county-level quality assurance program, and the state of New Jersey utilizes a continuous quality improvement system that could serve as instructive models for creating a similar program in this State; and

WHEREAS, an effective quality assurance program should support social workers, supervisors, and management and also support the development, implementation, and refinement of the service delivery system; and

WHEREAS, an effective quality assurance program should not only examine and assess the components of best-case practice, but also confirm strengths, identify successful strategies, and recommend ways in which effective practice or system performance may be replicated or improved; and

WHEREAS, an effective quality assurance program should recommend corrective actions that are necessary to improve services, capacity, outcomes, and conformity with federal, state, and departmental program requirements, help identify and provide necessary training, consultation, and technical assistance to department staff and technical providers, and also provide a system of review for the implementation and effects of such corrective actions, when needed, as a necessary part of the program's feedback loop; and

WHEREAS, implementing such a quality assurance program at the county level, with a full-time staff member of the county department designated as the quality assurance coordinator, would enable the creation of county-level quality assurance feedback loops and allow the department to be more responsive to unique service delivery needs within each county while also enabling statewide sharing of best practices; and

WHEREAS, a statewide, outcomes-based, county-level quality assurance program should be implemented in this State in an effort to provide the best possible service delivery to the children and families of this State; now, therefore

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) The commissioner shall develop a statewide, county-level quality assurance program. The commissioner shall implement the program no later than July 1, 2027. The purpose of the quality assurance program is to ensure quality control through monitoring, evaluation, and feedback on the performance of the best practices in the service delivery system, and utilizing both qualitative and quantitative data in outcomes-based approaches at the county level.

(b) When developing the quality assurance program, the commissioner shall:

(1) Ensure that the following components are incorporated into the program:

(A) County quality assurance systems in each county in this state, which must include a designated quality assurance coordinator and a county quality assurance committee;

(B) An office of quality assurance within the state department; and

(C) A state quality assurance committee;

(2) Consider the following as quality assurance goals, which the program should strive to achieve:

(A) Providing a permanent structure for independent, objective evaluations of the quality of services and outcomes for children and families;

(B) Increasing the capacity of the department to deliver improved services;

(C) Improving the outcomes for children and families served by the department; and

(D) Providing a point-in-time assessment of each county system;

(3) Consider implementing the following approaches in order to facilitate the realization of such quality assurance program goals:

(A) Reviewing outcomes experienced by children and families, particularly the outcome areas of safety, permanency, and child well-being;

(B) Reviewing the adequacy of major systemic factors that affect the capacity to deliver services that will lead to improved outcomes for children and families;

(C) Reviewing programs for consistency with applicable federal, state, and departmental policies;

(D) Reviewing the strengths of the service delivery system and the barriers to more effective performance;

(E) Providing information on system and outcome areas needing improvement and identifying barriers to improve service delivery; and

(F) Involving communities as partners with the department in evaluating best case practices; and

(4) Prioritize the following areas of information when designing reporting and review systems of county service delivery systems:

(A) Long-term trends;

(B) Quality of services and outcomes;

(C) Systemic issues;

(D) County improvement plans; and

(E) County feedback loops.

(c) As part of the quality assurance program, the commissioner shall post on the department's public website a grading system that reflects a grade for each county department's quality assurance performance and improvements, as reported to the state office of quality assurance within the department and reviewed by the state quality assurance committee. The commissioner shall update the grade for each county no less often than every six (6) months.

(d) Beginning with the fiscal year quarter ending September 30, 2026, and within thirty (30) days of the end of each fiscal year quarter until the quality assurance program required by this section is fully implemented, the commissioner shall send a report detailing the department's progress in implementing the program during the previous fiscal year quarter to the chief clerk of the senate, the chief clerk of the house of representatives, and the legislative librarian. The report may be published and transmitted by electronic means.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.